

information from her body was ever captured by the device or transmitted, unlike the cases cited above in which hidden devices were installed, and information was recorded and viewed by persons outside the plaintiff's zone of privacy.

Plaintiff has not cited any case where the mere existence of a hidden monitoring, eavesdropping, or video device that is not activated or does not result in the capture of private information has been held enough to state a claim for common law intrusion. The general demurrer to the fourth cause of action is therefore **sustained, with leave to amend**, as this is the first time the Court has reviewed the sufficiency of the allegations of the complaint, and Plaintiff may be able to allege additional facts to support the claims.

In granting leave to amend, the Court notes that the fourth cause of action in effect alleges under one heading **two distinct causes of action**, one based on a statutory violation with specific elements supplied by the statute, and one under the common law with different elements set forth in the case law. If Plaintiff files an amended complaint alleging these claims, the claims should be pleaded in separate causes of action. (See Cal. R. Ct., Rule 2.112.)

15. 9:00 AM CASE NUMBER: C25-02680

CASE NAME: NATHAN STEINLE VS. PREMDIP DHOOT

**HEARING IN RE: APPLICATION AND HEARING FOR RIGHT TO ATTACH ORDER AND ORDER FOR
ISSUANCE OF WRIT RE: PREMDIP S. DHOOT, HD 2670 WALNUT BLVD MEMBER, LLC, AND HD TALUS
MEMBER, LLC**

FILED BY: DHOOT, PREMDIP S

TENTATIVE RULING:

Before the Court are three applications by plaintiff, Nathan Steinle, to attach property owned by LLC defendants, HD 2670 Walnut Blvd Member, LLC and HD Talus Member, LLC, as well as property owned by the individual defendant, Premdip S. Dhoot.

Background

This case arises from a loan by plaintiff to permit defendants to develop and sell real property. (See Declaration of Nathan Steinle in Support of Application for Right to Attach Order and Writ of Attachment, hereinafter "Steinle Decl.," ¶12.) In consideration of the loan, LLC defendants executed a promissory note on August 24, 2022 in the principal amount of \$1,300,000, to be re-paid, along with an additional \$314,136.97 "Lender's Return," by January 1, 2024 ("Maturity Date"). (*Id.*, Ex. 1.) Individual defendant, Dhoot, guaranteed the note. (Steinle Decl., Ex. 2.)

Plaintiff contends that defendants refuse to comply with their repayment obligations and intend to sell the underlying properties being developed. Plaintiff contends defendants are likely to conceal any proceeds from the sales to prevent plaintiff from levying on such proceeds. Plaintiff attaches an email sent on September 16, 2025 demanding payment by the next day at 5:00 p.m. Plaintiff then filed this action on September 18, 2025. (Steinle Decl., Ex. 3.) In November 2025, plaintiff filed the present application for right to attach order and order for writ of attachment.

With respect to the LLC defendants, plaintiff seeks to attach 13 real properties and the following assets held in the LLCs' names: "real property, personal property, equipment, motor vehicles, chattel paper, negotiable and other instruments, securities, deposit accounts, safe deposit

boxes, accounts receivable, and general intangibles.” With respect to Dhoot, plaintiff seeks to attach, “[a]ll real property, personal property, equipment, motor vehicles, chattel paper, negotiable and other instruments, securities, deposit accounts, safe deposit boxes, accounts receivable, and general intangibles” in his name.

The applications are opposed by defendants, who argue plaintiff has failed to meet his burden to establish probable validity of the claim and has not shown a risk of irreparable harm. Defendants further contend the value of the property sought to be attached exceeds the amount of plaintiff’s claim. Defendants generally agree with the background provided by plaintiff (the amount of money loaned, the date loaned, and the purpose), though the Court observes that the Declaration of Premdip S. Dhoot is inconsistent with its own exhibits.

Defendants argue that parties agreed to an oral modification of the Maturity Date after the project suffered significant schedule delays and setbacks. The alleged new date would be “after the Project was finished and Defendant was able to list the Property for sale.” (Declaration of Premdip S. Dhoot in Support of Opposition, hereinafter “Dhoot Decl.,” ¶ 8.) Accordingly, defendants argue the alleged debt is not yet due, but do not give a specific date. Based on such purported modification, Dhoot argues there was no default on the promissory note that would trigger his liability on the personal guaranty.

Exemptions

A defendant who opposes a right to attach order must give notice of his objection, “accompanied by an affidavit supporting any factual issues raised and points and authorities supporting any legal issues raised.” (Code Civ. Proc. § 484.060, subd. (a).) The defendant may make a claim of exemption with respect to his property in the opposition. (Code Civ. Proc. § 484.070.)

Here, Dhoot claims his personal property is exempt because it is not among the items listed in Code of Civil Procedure §487.010, subdivision (c) and amounts to less than “\$8,725 in the aggregate.” He also represents that he holds no title to any items listed in Code of Civil Procedure §487.010, subdivision (c).

Plaintiff has not opposed the claim of exemption. The right to attachment of property owned by a natural person requires an adequate description. “Personal property” is insufficiently specific, as set forth in the opposition. Accordingly, all references to “personal property” shall be omitted from the description of property with respect to Dhoot.

Standard

Attachment is a pre-judgment creditor’s remedy. Generally, an order of attachment may be issued only in an action for a claim of money that is based upon an express or implied contract where the total amount of such claim is a fixed or readily ascertainable amount not less than \$500. (Code Civ. Proc., § 483.010, subd. (a).) A plaintiff may obtain a right to attach if the plaintiff establishes the probable validity of plaintiff’s claim. (Code Civ. Proc. § 484.090, subd. (a)(2).) “A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Proc. § 481.190; see also *Loeb & Loeb v. Beverly Glen Music, Inc.* (1985) 166 Cal.App.3d 1110, 1120; see *Kemp Bros. Construction, Inc. v. Titan Electric Corp.* (2007) 146 Cal.App.4th 1474, 1476.) The Court must also find that the attachment is not sought for a purpose other than the recovery on the claim upon which the request for attachment is based and that the amount to be secured by the attachment is greater than zero. (Code Civ. Proc. § 484.090.)

Discussion

The applications and supporting declarations adequately support the amount claimed and make all required representations to procure attachment. Plaintiff successfully demonstrates probable validity of his claims, and that the claims are ones upon which attachment is proper. (Code Civ. Proc., § 484.090(a)(1)-(2).) The attachment is not sought for purposes other than recovery on the claim, which amounts to a sum greater than zero. (*Id.* at (a)(3)-(4).)

Probability of Prevailing

Plaintiff has demonstrated a probability of prevailing on his breach of contract claim. Defendants have raised a modification defense that involves an adjustment to the due date. The defense appears to be insufficient for four reasons. First, while a written contract may be modified by oral agreement in certain circumstances (including execution and where there is new consideration), there is insufficient evidence of such circumstances here. (Civ. Code, § 1698 (b)-(c).) Second, with respect to the purported modification, defendants do not address the statute of frauds (Civil Code, §1624), which would bar oral modification. Third, while the promissory note is silent as to how the lender would extend the payment deadline (see Steinle Decl., Ex. 1, §3), the guaranty, requires modifications of the underlying documents to be in writing (Steinle Decl., Ex. 2, ¶4.1). Finally, and perhaps most importantly, plaintiff's reply declaration denies that parties adjusted the Maturity Date.

Irreparable Harm

Defendants contend plaintiff fails to show "irreparable harm." Code of Civil Procedure, § 485.010 describes the "great or irreparable injury" prerequisite to obtaining attachment. The showing is satisfied where there is a danger that property may become unavailable. Such conditions exist where "[u]nder the circumstances of the case, it may be inferred that there is a danger that the property sought to be attached would be concealed, substantially impaired in value, or otherwise made unavailable to levy if issuance of the order were delayed until the matter could be heard on notice." (*Id.* at subd. (b)(1).)

This standard is satisfied here. While plaintiff presents no specific evidence that defendants intend to conceal funds or deprive plaintiff of an available source of recovery, defendants confirm in the opposition papers that some project properties have already been sold and the inferences permitted by the above-cited statute are sufficient.

Value of the Property Sought to be Attached

With respect to defendants' argument that they do not hold title to certain properties listed in the applications, and that the value of the properties sought to be attached exceeds the debt, their concerns are unfounded. Any property not owned by a particular defendant cannot be attached. Further, assuming such attachment leads to a lien, once the debt is satisfied, no further recovery would be warranted.

Undertaking / Conclusion

An undertaking is required prior to the issuance of a writ of attachment in order to pay the defendant for any wrongful attachment. (Code Civ. Proc., § 489.210.) Plaintiff does not address the amount of the undertaking, but defendants argue the amount should be equal to the amount of the claimed debt.

Subject to the plaintiff posting an undertaking in the amount of \$1,852,410.94, and subject to the striking of "personal property" in Attachment 9 to the Application with respect to Dhoot, as identified above, the applications are **granted**. Plaintiff, as the prevailing party, shall lodge with the

Court an appropriate order reflecting this ruling in accordance with the Local Civil Rules.

16. 9:00 AM CASE NUMBER: MSC21-01827
CASE NAME: FROES VS. ROC FUNDING GROUP
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: ROC FUNDING GROUP,LLC A NEW YORK LIMITED LIABILITY COMPANY

TENTATIVE RULING:

The hearing on this matter is **vacated**. This matter is pending an appeal.

17. 9:00 AM CASE NUMBER: N25-2145
CASE NAME: CLAIM OF:TERRANCE WILEYTERRANCE WILEY
***HEARING ON MINOR'S COMPROMISE**

FILED BY:

Summary

Petitioner Darron Alonzo Thompson's Petition for Approval of Compromise of Minor Terrance Malik Wiley ("Minor") Claim, filed on October 28, 2025, is **granted**, as set forth below. No appearance is required at the hearing on February 25, 2026.

Background

Petitioner Darron Alonzo Thompson, parent and guardian ad litem for his son, Minor, filed the Petition through counsel Mahvar Roshani, Esq., to compromise the claim that Minor had against Bryan Ernest Keding related to an accident that occurred on August 21, 2023 in Pittsburg, California. In that accident, Minor sustained injuries including to his spine and lower back. Petitioner represents that Minor has received treatment at Kaiser Hospital and a Miller Chiropractic Injury Center. He has fully recovered and there are no permanent injuries. The Defendants collectively offered settlement in the amount of \$13,000, of which \$8,351 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$4,648.15 represents a negotiated deduction from the settlement, which is used to satisfy any liens for medical expenses and to pay for attorney's fees and costs incurred. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on October 28, 2025. No appearance is necessary at the February 25, 2026 hearing.

Discovery Law & Motion

18. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY ORDERS: 1) DEEMING ADMITTED TRUTH OF FACTS AS TO**